

What is an On-Site Audit Review (OSAR)?

Partnerships in Injury Reduction (PIR) of Alberta Labour and Immigration conducts about 80 OSARs each year to validate the key findings of external COR auditors and to ensure appropriate audit processes are followed. The OSAR process is conducted in addition to the regular quality assurance review that the Certifying Partner completes on every COR audit report.

An employer whose external auditor is selected for the OSAR process must participate in the process. The On-Site Audit Reviewer will spend no more than one day at the employer's worksite. Note during COVID, OSARs are conducted remotely by PIR.

The OSAR will review the auditor's process and sample some of the key documentation that was reviewed as part of the audit. Because auditors are certified by their Certifying Partner, PIR provides the OSAR findings directly to their Certifying Partner who then reviews the results with the auditor.

What happens if an OSAR also identifies systemic deficiencies in my OHS management system?

The intent and focus of the OSAR process is to evaluate the work of external auditors. However, in some cases OSARs have identified systemic deficiencies in employers' OHS management systems which were not identified by the original auditors. If this occurs, PIR will advise the employer and the employer must correct the identified deficiencies. This situation is considered a trigger for the Employer Review process, and PIR may require the employer to complete an action plan. PIR may also ask the employer's Certifying Partner to provide assistance to the employer.

What are the steps to complete an action plan?

The action plan process includes the following steps:

1. PIR will schedule a meeting with the COR holder's most senior Alberta representative and health and safety personnel to identify areas where system improvements must be made.
2. An action plan is developed with the COR holder, detailing system improvements to be completed within a set timeframe (typically between 6 to 12 months), and must be approved by PIR.
3. PIR will follow-up with the COR holder within the established timeframe to verify completion of the action plan items undertaken.
4. Once the action plan items have been successfully completed, PIR will close the assignment and advise the WCB to remove the temporary hold on the COR holder's eligibility for PIR refunds.

What is the Employer Review process?

Employer Reviews are designed to address situations where COR holders are identified to have systemic deficiencies in their COR-certified health and safety management systems. The Employer Review process was implemented on July 1, 2011 with the support of industry and safety associations, employers, labour organizations, the Workers' Compensation Board – Alberta (WCB), and other stakeholders. The provisions of Employer Review apply to all COR holders.

Note the process to select employers for Employer Review process is under review, and a new method of employer selection is being developed that will be based on OHS performance identified through multiple metrics over multiple years.

What happens if a COR holder is charged under OHS and/or WCB Legislation?

COR-holders are eligible for PIR Refunds from the WCB, however they must comply with all provisions of the *Alberta Workers' Compensation Act*, the *Alberta Occupational Health & Safety Act*, and, the *Canada Labour Code* where applicable. In the event of a violation of the legislation, the WCB reserves the right to terminate participation in PIR and collect previously paid refunds.

If a COR holder is charged under the legislation, a hold will be placed on the next PIR refund to be issued (and subsequent refunds if necessary) until the WCB is holding an amount equal to the refund the COR holder received for the year in which the incident occurred. This amount will remain on-hold with the WCB until the outcome of the charges is known.

- If a COR holder is convicted (either found guilty or pleads guilty), the PIR refund on-hold is forfeited to the WCB.
- If a COR holder is found not guilty or if the charges are withdrawn or dismissed, then the PIR refund on-hold is released.
- If the charges are stayed by the Crown Prosecutor, the WCB would release the PIR refund on-hold. However if the Crown reactivates the stayed charges within a one-year period and if the COR holder is subsequently convicted, then refund would be required to be repaid to the WCB.

For more information

For more information about the COR program, please call the OHS Contact Centre at (780) 415-8690 (toll free 1-866-415-8690), visit our website at <https://www.alberta.ca/get-certificate-recognition.aspx> or contact your Certifying Partner.